

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

CASE OF SAFRONOV AND OTHERS v. RUSSIA

(Applications nos. 55881/17 and 27 others –
see appended list)

JUDGMENT

STRASBOURG

8 June 2023

This judgment is final but it may be subject to editorial revision.



In the case of Safronov and Others v. Russia,

The European Court of Human Rights (Fifth Section), sitting as a Committee composed of:

María Elósegui*, President*,
Mattias Guyomar,
Kateřina Šimáčková*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 17 May 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as participants or organisers of public assemblies. Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as participants or organisers of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts); *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014; and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, having dismissed the Government's objection of non-exhaustion of domestic remedies (see *Smadikov v. Russia* (dec.), no. 10810/15, 31 January 2017) and having taken into account the issue of compliance with the six-month time-limit under Article 35 § 1 of the Convention (see *Saakashvili v. Georgia* (dec.), nos. 6232/20 and 22394/20, §§ 46-59, 1 March 2022, in which the Court addressed the COVID-related extension of the period in question), the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see the appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols

in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018; *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018; and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a prosecuting party in the proceedings under the Code of Administrative Offences (CAO); *Martynyuk v. Russia*, no. 13764/15, §§ 37-43, 8 October 2019, related to the lack of a suspensive effect on an appeal against the sentence of detention under the CAO; *Korneyeva*, cited above, §§ 47-65, related to the right not be tried or punished twice in the criminal proceedings; and *Lashmankin and Others v. Russia*, nos. 57818/09 and 14 others, §§ 402-78, 7 February 2017, regarding restrictions on location or time of public events.

V. REMAINING COMPLAINTS

14. In view of the findings in paragraphs 11 and 13 above, there is no need to examine the other aspects of the complaints raised by some applicants under Articles 5 and 6 of the Convention or under other provisions of the Convention.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with the applicants' complaints as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints;

4. *Holds* that there has been a violation of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see the appended table);

6. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 8 June 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	María Elósegui President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	55881/17 13/07/2017	**Aleksandr Nikolayevich SAFRONOV** 1987		Anticorruption event Yeisk, 12/06/2017	Article 20.2 § 2 of CAO	10 days of detention	Krasnodar Regional Court 20/06/2017		5,000
2.	78686/17 25/10/2017	**Ivan Konstantinovich VASHCHENKO** 1987	Peredruk Aleksandr Dmitriyevich St Petersburg	Anticorruption rally St Petersburg, 12/06/2017	Article 19.3 § 1 of CAO Article 20.2 § 5 of CAO	2 days of detention fine of RUB 10,000	St Petersburg City Court 06/07/2017	Art. 5 (1) - unlawful detention - on 12-14/06/2017 escorting to and detention in a police station for and after compiling offence reports, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings, Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - Final decision in both sets of the proceedings - 06/07/2017, St Petersburg City Court; Art. 19.3 § 1 CAO and Art. 20.2 § 5 CAO; overlap of the facts constituting the basis for the applicant's prosecution and punishment in the second set of the proceedings with substantially the same facts underlying his conviction in the first set of proceedings	5,000, for pecuniary and non-pecuniary damage, to the applicant 850, for legal costs, to be paid to his lawyer, Mr A. Peredruk
3.	3465/18 03/01/2018	**Yevgeniy Mikhaylovich MASHININ** 1997	Terekhov Konstantin Ilyich Moscow	Anticorruption rally Moscow,	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 04/07/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - in the case under Article 20.2 § 6.1 of CAO,	5,000

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				26/03/2017 Rally to support A. Navalnyy Moscow, 31/01/2021	Article 20.2 § 6.1 of CAO	7 days of detention	Moscow City Court 27/05/2021	Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal: lack of a suspensive effect of an appeal against sentence of detention - the applicant started serving the sentence of administrative detention immediately after the conviction by the first-instance court; the lodging of appeal or appeal proceedings do not offer suspensive effect	
4.	48446/18 04/10/2018	**Ivan Mikhaylovich DIVILKOVSKIY** 1990	Balog Natalya Andreyevna Krasnoyarsk	Anticorruption rally Moscow, 12/06/2017 Rally to support I. Golunov Moscow, 12/06/2019	Article 20.2 § 5 of CAO Article 20.2 § 6.1 of CAO	fine of RUB 20,000 fine of RUB 10,000	Moscow City Court 04/04/2018 Moscow City Court 10/02/2020	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings	3,500
5.	59664/18 06/12/2018	**Mikhail Sergeyevich IVANOV** 1996	Glukhov Aleksey Vladimirovich Novocheboksarsk	Opposition rally Cheboksary, 05/05/2018 Rally to support A. Navalnyy Cheboksary,	Article 20.2 § 5 of CAO Article 20.2 § 5 of CAO	20 hours of community work fine of RUB 10,000	Supreme Court of Chuvashia Republic 07/06/2018 Supreme Court of Chuvashia Republic 22/03/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings, Art. 5 (1) - unlawful detention - on 23/01/2021 escorting to a police station for compiling an offence report	4,000

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				23/01/2021					
6.	2485/19 02/01/2019	**Sergey Nikolayevich KUPRIYANOV** 1994	Zhdanov Ivan Yuryevich Vilnius	Distribution of leaflets to support A. Navalny Smolensk, 15/03/2018	Article 20.2 § 2 of CAO	20 hours of community work	Smolensk Regional Court 11/07/2018		3,500
7.	3017/19 29/12/2018	**Yevgeniy Alekseyevich MAKAROV** 1955	Zboroshenko Nikolay Sergeyevich Mytishchi	Political rally Moscow, 12/03/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 04/09/2018		3,500
8.	6683/19 21/01/2019	**Maksim Anatolyevich RUDYK** 1982	Zhdanov Ivan Yuryevich Vilnius	Opposition rally Moscow, 05/05/2018	Article 19.3 § 1 of CAO Article 20.2 § 5 of CAO	fine of RUB 1,000 fine of RUB 15,000	Moscow City Court 30/07/2018 Moscow City Court 06/08/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - in the case under Article 20.2 § 5 of CAO, Art. 11 (1) - restrictions on location, time or manner of conduct of public events - refusal to approve a rally planned for 18/04/2018 (final decision on 25/03/2019, Supreme Court of Russia)	3,500
9.	11719/19 19/02/2019	**Darina Sergeyevna FOMOVA** 1994	Yatsenko Irina Aleksandrovna Moscow	Rally for animal protection Moscow, 07/02/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 20/08/2018	Art. 5 (1) - unlawful detention - on 07-08/02/2018 escorting to and detention in a police station for and after compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
10.	24504/19 29/04/2019	**Dmitriy Ivanovich DOROKHIN** 1963	Peredruk Aleksandr Dmitriyevich St Petersburg	Rally against abusive criminal prosecution	Article 20.2.2 § 1 CAO	fine of RUB 10,000	St Petersburg City Court 20/12/2018	Art. 5 (1) - unlawful detention – (i) on 28-29/10/2018 escorting to and detention in a police station for and after compiling an offence report; (ii) on	4,000

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				St Petersburg, 28/10/2018 "Mothers' rage march" rally St Petersburg, 10/02/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 17/10/2019	10/02/2019 escorting to a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings	
11.	34223/19 14/06/2019	**Valentin Pavlovich PANFEROV** 1999	Yatsenko Irina Aleksandrovna Moscow	Rally against abusive criminal prosecution Moscow, 28/10/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 14/12/2018	Art. 5 (1) - unlawful detention - on 28/10/2018 escorting to a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
12.	34270/19 14/06/2019	**Aleksandr Aleksandrovich PELEVIN** 2000	Yatsenko Irina Aleksandrovna Moscow	Rally against abusive criminal prosecution Moscow, 28/10/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 14/12/2018	Art. 5 (1) - unlawful detention - on 28/10/2018 escorting to a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
13.	34399/19 14/06/2019	**Rukhulla Khafizullayevich BORODIY** 1997	Glukhov Aleksey Vladimirovich Novocheboksarsk	Rally against abusive criminal prosecution Moscow, 28/10/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 14/12/2018	Art. 5 (1) - unlawful detention – (i) on 28/10/2018 escorting to a police station for compiling an offence report; (ii) on 27-29/07/2019 escorting to and detention in a police station for and after compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings,	5,000

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				Rally fair elections to Mosgorduma Moscow, 27/07/2019	Article 20.2 § 6.1 of CAO	5 days of detention	Moscow City Court 06/08/2019	Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal: lack of a suspensive effect of an appeal against sentence of detention - the applicant started serving the sentence of administrative detention immediately after the conviction by the first-instance court; the lodging of appeal or appeal proceedings do not offer suspensive effect	
14.	34848/19 17/06/2019	**Sergey Sergeyevich GRECHISHKIN** 1988	Chernyavskaya Andzhelika Viktorovna Oktyabrskiy	Rally against the pension reform Novosibirsk, 09/11/2018	Article 20.2 § 5 of CAO	fine of RUB 5,000	Novosibirsk Regional Court 18/12/2018		3,500
15.	44148/19 12/08/2019	**Georgiy Alekseyevich KOVALEV** 1997	Yatsenko Irina Aleksandrovna Moscow	Rally against abusive criminal prosecution Moscow, 28/10/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 14/02/2019	Art. 5 (1) - unlawful detention - on 28/10/2018 escorting to a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
16.	58548/19 29/10/2019	**Ilya Valeryevich SIYALOV** 1984	Peredruk Aleksandr Dmitriyevich St Petersburg	Rally for fair elections St Petersburg, 01/05/2019	Article 20.2 § 5 of CAO	20 hours of community work	St Petersburg City Court 23/07/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
17.	59935/19 01/11/2019	**Alina Sergeyevna MISHEVA** 1999	Peredruk Aleksandr Dmitriyevich St Petersburg	Rally for fair elections St Petersburg, 01/05/2019	Article 20.2 § 5 of CAO	20 hours of community work	St Petersburg City Court 18/06/2019	Art. 5 (1) - unlawful detention - on 01/05/2019 escorting to a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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18.	63606/19 29/11/2019	**Aleksey Vladimirovich YURCHUK** 1981	Pomazuyev Aleksandr Yevgenyevich Vilnius	Rally for fair elections to Mosgorduma Moscow, 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 30/08/2019	Art. 5 (1) - unlawful detention - on 27/07/2019 escorting to and detention in a police station for compiling an offence report (which was then compiled on 31/07/2019), Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
19.	2490/20 29/11/2019	**Dmitriy Aleksandrovich SHUKOLYUKOV** 1979	Peredruk Aleksandr Dmitriyevich St Petersburg	Rally for fair elections St Petersburg, 01/05/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 01/10/2019	Art. 5 (1) - unlawful detention - on 01/05/2019 escorting to a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
20.	2613/20 17/12/2019	**Vyacheslav Sergeyevich YEPIFANOV** 1977	Peredruk Aleksandr Dmitriyevich St Petersburg	Rally for fair elections St Petersburg, 01/05/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 01/10/2019	Art. 5 (1) - unlawful detention - on 01/05/2019 escorting to a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
21.	3411/20 09/12/2019	**Yuliya Vladimirovna TKACHENKO** 1963	Kachanov Roman Yevgenyevich Yekaterinburg	Rally against a church construction Yekaterinburg, 16/06/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Sverdlovsk Regional Court 06/08/2019		3,500
22.	4371/20 03/12/2019	**Aleksandr Sergeyevich ALEKSANDROV** 1978	Peredruk Aleksandr Dmitriyevich St Petersburg	Rally for fair elections St Petersburg, 01/05/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 09/07/2019	Art. 5 (1) - unlawful detention - on 01/05/2019 escorting to a police station for compiling an offence report	4,000

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23.	5160/20 16/12/2019	**Oleg Anatolyevich PERETRUKHIN** 1971	Peredruk Aleksandr Dmitriyevich St Petersburg	Rally for fair elections St Petersburg, 01/05/2019	Article 20.2 § 5 of CAO	20 hours of community work	St Petersburg City Court 24/09/2019	Art. 5 (1) - unlawful detention - on 01/05/2019 escorting to a police station for compiling an offence report , Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
24.	6559/20 23/01/2020	**Ilya Denisovich SMIRNOV** 1999	Zakhvatov Dmitriy Igorevich Moscow	Rally against the isolation of the Russian segment of the Internet Moscow, 10/03/2019	Article 20.2 § 5 of CAO	fine RUB 10,000	Moscow City Court 24/07/2019	Art. 5 (1) - unlawful detention - on 10/03/2019 escorting to a police station for compiling an offence report	4,000
25.	17334/20 26/02/2020	**Viktor Viktorovich PRIYMACHENKO** 1988		Rally to support I. Golunov Moscow, 12/06/2019	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 28/08/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
26.	19333/20 23/03/2020	**Vadim Sergeyevich LITVINENKO** 2001	Pomazuyev Aleksandr Yevgenyevich Vilnius	Rally for fair elections to Mosgorduma Moscow, 27/07/2019 Rally to support A. Navalnyy	Article 20.2 § 6.1 of CAO Article 20.2 § 6.1 of CAO	fine of RUB 10,000 13 days of detention	Moscow City Court 22/10/2019 Moscow City Court 30/01/2021	Art. 5 (1) - unlawful detention – (i) on 27-28/07/2019 escorting to a police station for compiling an offence report; (ii) on 23-25/01/2021 detention in a police station after compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal: lack of a suspensive effect of an appeal against sentence of detention - the applicant started serving the	5,000

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				Moscow, 23/01/2021				sentence of administrative detention immediately after the conviction by the first-instance court; the lodging of appeal or appeal proceedings do not offer suspensive effect	
27.	26827/20 23/04/2020	**Natalya Yuryevna BARINOVA** 1981	Peredruk Aleksandr Dmitriyevich St Petersburg	Rally for fair elections St Petersburg, 01/05/2019	Article 20.2 § 5 of CAO	fine of RUB 11,000	St Petersburg City Court 29/10/2019	Art. 5 (1) - unlawful detention - on 01/05/2019 escorting to a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
28.	27889/20 13/06/2020	**Sergey Vladimirovich KACHALIN** 1987	Mezak Ernest Aleksandrovich Saint-Barthélemy d'Anjou	Rally for fair elections to Mosgorduma Moscow, 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 18/10/2019	Art. 5 (1) - unlawful detention - on 27-29/07/2019 escorting to and detention in a police station for and after compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

[1] Plus any tax that may be chargeable to the applicants.